

SC ruling on evidence in matrimonial disputes raises questions about right to privacy

The Supreme Court **ruled** last week that secretly recorded conversations between spouses are admissible evidence in matrimonial disputes. The Court **set aside** a 2021 Punjab and Haryana High Court judgment that **barred** a husband, who **sought** a divorce, from using secretly recorded phone conversations with his wife as evidence in court. This was a crucial question for the apex court to settle, since several high courts had given different rulings on the issue. The Indian Evidence Act, 1872, **codifies spousal privilege** — a common law principle that a person cannot be **compelled to testify** against their spouse in a criminal case. While this provision **carves out** an exception for cases fought between the spouses themselves, high courts have been **reluctant** to allow secret recordings as evidence since there is a **reasonable** expectation of privacy in a marriage. The SC ruling is a careful balancing of the fundamental right to privacy and the right to a fair **trial**. It also raises larger questions about the right to privacy as understood in personal spaces in a deeply **invasive** digital era.

Divorce cases are often **bitterly contested**. **At stake** is not just a court **decree** for separation but a bundle of rights, from **alimony** to custody of children. With **vast** digital **footprints** even in the most private of spaces, the nature of ‘evidence’ to prove **allegations** in these cases has changed over the years. From CCTV footage, text chains, emails and video and voice recordings, evidence can be gathered with a single click. “The **phone** on which the conversation was recorded **is** no different from an **eavesdropper**,” the Court said. These are not **aspects** that lawmakers would have **envisaged** when codifying the law on spousal privilege. On the issue of privacy, the Court said that there is no right to privacy between married spouses. The ruling says that the right is applicable against the state and not against private individuals, even if that is within marriage, where a degree of privacy is expected. This interpretation is **at odds with** how larger SC **benches** have **interpreted** the right to privacy. The Court has in previous judgements **called for** a horizontal application of the right to privacy, **exercised** against the state and a **fellow** citizen.

Allowing covert evidence in matrimonial disputes **is consequential**. It could **have a bearing on** other kinds of matrimonial issues, including marital rape, where the question of how **credible** evidence will be gathered is often raised. Even as the SC has allowed covert evidence, trial courts will still have to balance the **relevance** of such evidence, as there exists a significant gender gap in smartphone ownership and access to technology. **[Practice Exercise]**

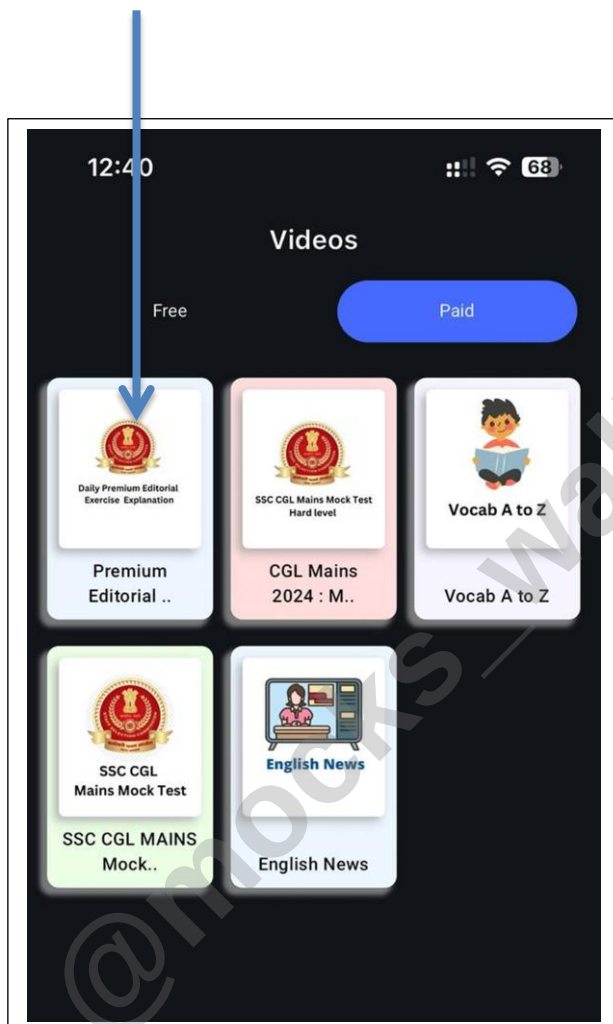
- Red/blue coloring of words in the sentence indicates subject verb relationship; where ‘red’ denotes ‘subject’ and ‘blue’ denotes ‘verb’.

Vocabulary

1. **Ruling** (noun) – decision, judgment, verdict, pronouncement, decree – निर्णय
2. **Rule** (verb) – decide, judge, determine, declare, pronounce – फैसला सुनाना
3. **Set aside** (phrasal verb) – annul, overturn, cancel, invalidate, nullify – रद्द करना
4. **Bar** (verb) – prohibit, forbid, ban, restrict, exclude – रोक लगाना
5. **Seek** (verb) – pursue, request, attempt, solicit, strive – मांग करना / प्रयास करना
6. **Codify** (verb) – systematize, organize, classify, arrange, compile – संहिताबद्ध करना
7. **Spousal** (adjective) – marital, matrimonial, conjugal, wedded, nuptial – वैवाहिक
8. **Privilege** (noun) – right, benefit, advantage, exemption, immunity – विशेषाधिकार
9. **Compel** (verb) – force, coerce, oblige, pressure, enforce – बाध्य करना
10. **Testify** (verb) – depose, declare, state, give evidence, attest – गवाही देना
11. **Carve out** (phrasal verb) – create, establish, shape, define, form – निर्धारित करना / अलग करना
12. **Reluctant** (adjective) – hesitant, unwilling, disinclined, averse, resistant – अनिच्छुक
13. **Reasonable** (adjective) – fair, justifiable, rational, sensible, moderate – उचित
14. **Trial** (noun) – hearing, case, court proceeding, lawsuit, adjudication – मुकदमा
15. **Invasive** (adjective) – intrusive, disturbing, nosy, meddling, violating – दखल देने वाला
16. **Bitterly** (adverb) – fiercely, strongly, angrily, resentfully, harshly – तीव्रता से / कड़वाहट से
17. **Contested** (adjective) – disputed, challenged, opposed, debated, argued – विवादित
18. **At stake** (phrase) – in question, at risk, on the line, in danger, involved – दांव पर
19. **Decree** (noun) – order, judgment, ruling, directive, edict – आदेश / फैसला
20. **Alimony** (noun) – maintenance, support, allowance, spousal support, sustenance – गुजारा भत्ता
21. **Vast** (adjective) – extensive, immense, massive, enormous, huge – विशाल
22. **Footprint** (noun) – trace, track, mark, record, imprint – चिन्ह / छाप

23. **Allegation** (noun) – accusation, charge, claim, assertion, statement – आरोप
24. **Eavesdropper** (noun) – spy, listener, snooper, interceptor, overhearer – चुपके से सुनने वाला
25. **Aspect** (noun) – feature, facet, element, angle, component – पहलू
26. **Envisage** (verb) – imagine, foresee, predict, anticipate, conceptualize – कल्पना करना
27. **At odds with** (phrase) – in conflict, inconsistent, contrary, opposed, differing – असहमति में
28. **Bench** (noun) – panel, judgeship, court, tribunal, judiciary – न्यायाधीशों का समूह
29. **Interpret** (verb) – explain, understand, construe, clarify, decode – व्याख्या करना
30. **Call for** (phrasal verb) – demand, require, appeal, request, necessitate – मांग करना
31. **Exercise** (verb) – use, apply, employ, practice, implement – प्रयोग करना
32. **Fellow** (adjective) – peer, companion, equal, co-, associate – समान / साथी
33. **Covert** (adjective) – secret, hidden, concealed, undercover, stealthy – गुप्त
34. **Consequential** (adjective) – significant, important, impactful, critical, weighty – परिणामस्वरूप / प्रभावशाली
35. **Have a bearing on** (phrase) – affect, influence, relate to, impact, concern – प्रभाव डालना
36. **Credible** (adjective) – believable, trustworthy, reliable, valid, convincing – विश्वसनीय
37. **Relevance** (noun) – significance, importance, pertinence, applicability, connection – प्रासंगिकता

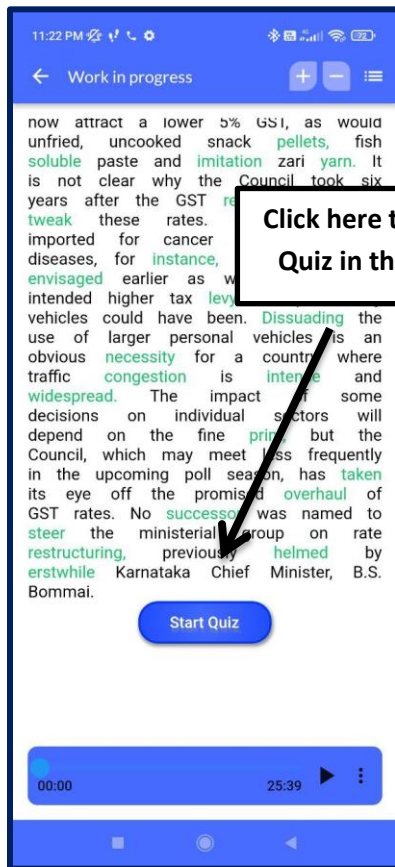
Video solution of Practice Exercise from this Editorial is exclusively available on App.



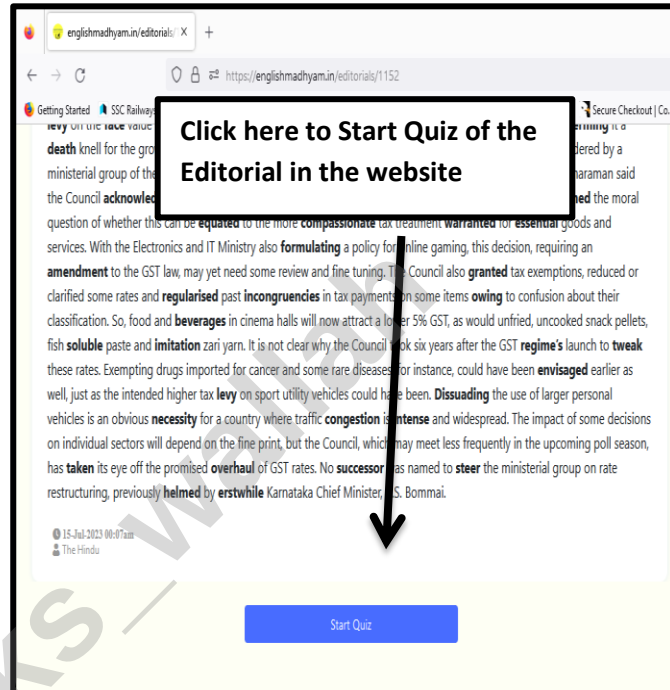
Summary of the Editorial

1. SC Allows Secret Recordings – The Supreme Court ruled that secretly recorded conversations between spouses are admissible evidence in matrimonial disputes.
2. High Court Ruling Overturned – This judgment set aside a 2021 Punjab and Haryana High Court verdict that disallowed a husband from using recorded phone calls with his wife in a divorce case.
3. Conflicting HC Rulings – The issue was important as various High Courts had delivered contradictory judgments on whether such evidence is permissible.
4. Spousal Privilege Under Law – The Indian Evidence Act, 1872, protects spousal privilege — disallowing one spouse from testifying against the other in criminal cases.
5. Exception in Spousal Cases – However, this privilege does not apply in disputes between spouses, such as divorce proceedings.
6. Privacy Expectation in Marriage – Many High Courts hesitated to accept secret recordings due to the presumed privacy within marriage.
7. Balancing Privacy and Fair Trial – The SC attempted to balance two fundamental rights: privacy and the right to a fair trial.
8. Changing Nature of Evidence – With increasing digital penetration, evidence now includes CCTV footage, messages, emails, and covert recordings.
9. Court's Eavesdropping Analogy – The SC likened the recording phone to an eavesdropper, suggesting it's similar to someone overhearing a conversation.
10. Marriage and Privacy – The Court stated that no privacy right exists between spouses, which contrasts with previous SC rulings favoring broader privacy rights.
11. Horizontal Privacy Debate – Earlier SC benches supported the horizontal application of privacy — enforceable not just against the state, but also between individuals.
12. Contradiction in Interpretation – This recent ruling appears inconsistent with past Supreme Court interpretations of the right to privacy.
13. Broader Implications – The ruling may affect other sensitive cases like marital rape, where gathering credible evidence is challenging.
14. Role of Trial Courts – Despite SC's approval of covert evidence, trial courts must still evaluate its relevance and fairness.
15. Gender Access Concerns – The editorial flags the digital divide, especially women's limited access to smartphones and technology, as a potential concern in justice delivery.

Practice Exercise: SSC Pattern Based



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